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Article X of the Treaty of Guadalupe Hidalgo

The Treaty of Guadalupe Hidalgo made all the difference for the future of Latinxs in the United States...this is critical material!

The Treaty of Guadalupe Hidalgo was sold as "a treaty of peace, friendship, limits, and settlement." The original document proposes all kinds of articles that clearly benefit the US, but it's Article X, "guaranteeing the protection of Mexican land grants" that the United States Senate deleted, changing the entire nature of the treaty.

According to National Archives:

This treaty, signed on February 2, 1848, ended the war between the United States and Mexico. By its terms, Mexico ceded 55 percent of its territory, including the present-day states California, Nevada, Utah, New Mexico, most of Arizona and Colorado, and parts of Oklahoma, Kansas, and Wyoming. Mexico also relinquished all claims to Texas, and recognized the Rio Grande as the southern boundary with the United States.

The Treaty of Guadalupe Hidalgo, which brought an official end to the Mexican-American War (1846-48), was signed on February 2, 1848, at Guadalupe Hidalgo, a city to which the Mexican government had fled with the advance of U.S. forces.

With the defeat of its army and the fall of the capital, Mexico City, in September 1847, the Mexican government surrendered to the United States and entered into negotiations to end the war. The peace talks were negotiated by Nicholas Trist, chief clerk of the State Department, who had accompanied General Winfield Scott as a diplomat and President Polk's representative. Trist and General Scott, after two previous unsuccessful attempts to negotiate a treaty with President Santa Anna, determined that the only way to deal with Mexico was as a conquered enemy. Nicholas Trist negotiated with a special commission representing the collapsed government led by Don Bernardo Couto, Don Miguel Atristain, and Don Luis Gonzaga Cuevas.

President Polk had recalled Trist in October 1847 under the belief that negotiations would be carried out with a Mexican delegation in Washington. In the six weeks it

took to deliver Polk's message, Trist received word that the Mexican government had named its special commission to negotiate. Trist determined that Washington did not understand the situation in Mexico and negotiated the peace treaty in defiance of the president.

In a December 4, 1847, letter to his wife, Trist wrote, "Knowing it to be the very last chance and impressed with the dreadful consequences to our country which cannot fail to attend the loss of that chance, I decided today at noon to attempt to make a treaty; the decision is altogether my own."

Trist sent a copy to Washington, and President Polk forwarded the treaty to the Senate for their advice and consent. When the Senate reluctantly ratified the treaty (by a vote of 34 to 14) on March 10, 1848, it removed Article X guaranteeing the protection of Mexican land grants. Following the ratification, the United States withdrew its troops from the Mexican capital.

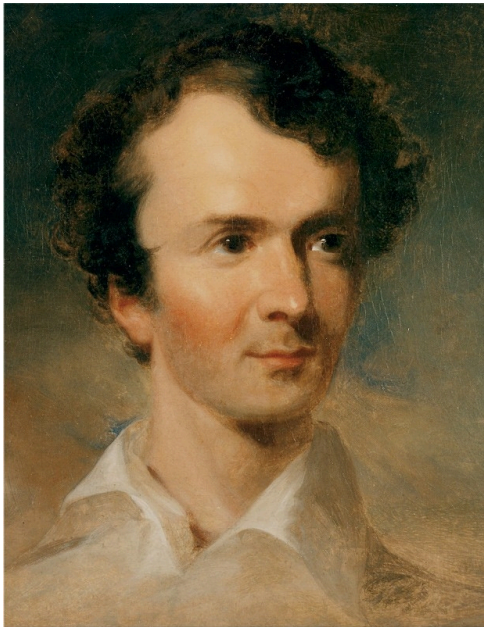
With the annexation of more than 525,000 square miles of land, the Treaty of Guadalupe Hidalgo extended the boundaries of the United States west to the Pacific Ocean. This agreement, along with the 1853 Gadsden Purchase, created the southern border of the present-day United States.

The U.S. government paid Mexico \$15 million "in consideration of the extension acquired by the boundaries of the United States" and agreed to pay American citizens debts owed to them by the Mexican government. Other provisions included the protection of property and civil rights of Mexican nationals living within the new boundaries of the United States, the promise of the United States to police its boundaries, and compulsory arbitration of future disputes between the two countries.

But wait, who's this guy, Trist?

However much the extending of America's borders may have seemed like destiny at the time, much of the process was not as noble as its early proponents declared, and in the Southwest it represented at least partially a deliberate land grab.

The work of one rather eccentric idealist, a Virginian named Nicholas Philip Trist, allows modern Americans to consider what happened during the years 1846-48 without what one writer called "a thorough revulsion." Nicholas Trist (1800-74) was one of those rare public figures who really live dangerously, prepared to risk



everything for principle. Generally unknown today, and slighted or scorned when mentioned at all, he was a man of importance in his time, for he defied a presidential recall order and negotiated with Mexico the treaty that won for the United States the vast Southwest. Trist was closely acquainted with the great ones of his time—including Thomas Jefferson, James Madison, and Andrew Jackson—and was esteemed by those who really knew him.

The one existing biography of Trist is also a story of many of the important people and movements of his time. Trist was an idealist, more uncompromising than his idol, Thomas Jefferson (who was also the grandfather of Trist's wife). Trist was respected by many of his contemporaries and, surprisingly for a man of his unbending character, befriended by many. Yet there were many who despised him. On two unrelated occasions, eight years apart, he stood as the most controversial figure in America. In some ways, he was his own worst enemy...diplomats with whom he worked in Mexico admired and respected him for his unfailing patience and courtesy under the most trying conditions.

Ultimately, his career was thoroughly destroyed by its one great, defining achievement: the negotiation of the Treaty of Guadalupe Hidalgo, the peace that ended the Mexican War. Ohrt demonstrates that Trist's quintessential character can best be distilled in a tribute he paid to another: "He is . . . a true lover of justice." [There is] voluminous correspondence of the Trist and Randolph families of Virginia [that details] how the U.S.-Mexican War [was full of] intrigues and rivalries behind the political and military activities of the war...

Source: *Defiant Peacemaker: Nicholas Trist in the Mexican War* by Wallace Ohrt

Read it! The infamous "Article X"...

Believe it or not, the original text of the deleted Article X is very difficult to find. The Treaty of Guadalupe Hidalgo is an archived government document, but since the article was deleted, what is archived is incomplete. The folks at THE HOMESTEAD MUSEUM went the extra mile to create a museum blog post that addresses the treaty and includes the missing article. Amazing!

➡ **Read and annotate** more on Article X, including the actual article by clicking on the link below. This is critical information that will help you build your understanding of how the deletion of this part of the treaty changed everything.

"Article Ten of the Treaty of Guadalupe Hidalgo, 1848" ➡

(<https://homesteadmuseum.blog/2019/05/31/article-ten-of-the-treaty-of-guadalupe-hidalgo-1848/>)

- **Skim** up to the part that begins "Yet, he went on:" and annotate the remainder of the post.

Optional reading-->**[Click here for the full language of the Treaty of Guadalupe Hidalgo](https://avalon.law.yale.edu/19th_century/guadhida.asp)** ➡ **(https://avalon.law.yale.edu/19th_century/guadhida.asp)**.